

25STCV22998 25STCV22998

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: PLAINTIFF, JOANNA PATRICE'S NOTICE OF MOTION AND MOTION TO COMPEL COMPLIANCE WITH COURT ORDERS; REQUEST FOR ISSUE SANCTIONS, EVIDENTIARY SANCTIONS; AND MONETARY SANCTION

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Case Number: 25STCV22998 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

JOANNA PATRICE, an individual,

Plaintiff,

vs.

HSR MOORPARK, LLC, a California
limited liability company; HSR MANAGEMENT, INC., a California corporation;
and DOES 1-50, INCLUSIVE,

Defendants.

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CASE NO: 25STCV22998

[TENTATIVE] ORDER RE: PLAINTIFF,
JOANNA PATRICE'S NOTICE OF MOTION AND MOTION TO COMPEL COMPLIANCE WITH COURT
ORDERS; REQUEST FOR ISSUE SANCTIONS, EVIDENTIARY SANCTIONS; AND MONETARY
SANCTION

Dept. 731

August 4, 2026

8:30 a.m.

Moving Party: Plaintiff, Joanna Patrice

Opposing Party: Defendant, HSR Moorpark, LLC

Notice: OK

Background Facts

Plaintiff Joanna Patrice sues

Defendants HSR Moorpark, LLC, HSR Management, Inc., and Does 1-50 pursuant to an October 1, 2025, First Amended Complaint ("FAC") alleging statutory and common law claims arising from allegations that Defendants allowed persistent water intrusion, mold, and asbestos hazards to remain unaddressed in her unit, responded to her repair requests with threats and retaliation, caused her significant health issues and property contamination, reduced required housing services, and discriminated against her based on her sex and medical condition.

Now before the Court are Plaintiff

Joanna Patrice's opposed (1) motion to compel compliance with court orders, (2) request for issue sanctions and evidentiary sanctions, and (3) request for monetary sanctions.

Motion to Compel

Compliance with Court Orders

a. Preliminary

Note re: Nature of Motion

A trial court may construe a motion bearing one label as a different type of motion. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 930.) "The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words. ... The principle that a trial court may consider a motion regardless of the label placed on it by a party is consistent with the court's inherent authority to manage and control its docket." [Citation.]" (Ibid.)

In its opposition to the motion to compel compliance with Court orders, Defendant HSR Moorpark argues that Plaintiff's motion is procedurally improper for being noticed pursuant to Code of Civil Procedure section 2025.450. (See, e.g., Opposition, pp. 7-8.)

This is correct insofar as it goes.

However, it is clear from the face of the record and the nature of the relief sought that Plaintiff is seeking to enforce this Court's April 21, 2026, order mandating that Defendants produce subpoenaed documents concerning incidents of water intrusion, mold and remediation in the subject property. (See Motion, pp.

3, 4-5.)

Consequently, the Court reads this motion as being brought pursuant to a counterpart of the statute pursuant to which Plaintiff brought this motion, i.e., Code of Civil Procedure section 2025.480 as opposed to section 2025.450.

b. Legal
Standard

Code of Civil Procedure section 2025.480 authorizes a motion to compel when a deponent fails to answer a question or produce documents, electronically stored information, or tangible things identified in a deposition notice or subpoena, and subdivision (a) expressly provides that the party seeking discovery may request an order compelling such an answer or production. (Code Civ. Proc., § 2025.480, subd. (a).)

If a deponent fails to obey an order issued under this section, that failure may be treated as contempt of court, and when the disobedient deponent is a party—or an officer, director, managing agent, or employee of a party—the court may issue any just orders against that party or its affiliated party, including imposing an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). (Code Civ. Proc., § 2025.480, subd. (k).)

c. Discussion

Plaintiff has filed a motion to enforce this Court's April 21, 2026, order. That order resolved a motion filed by Plaintiff to compel HSR Moorpark to comply with 28 subpoenas for records. The subpoenas sought records copies of each unit's lease agreement, work orders for repairs, and estimates and bills for remediation or repairs for water intrusion, mold, "etc." for each apartment in Plaintiff's building. The Court granted the motion in part, ordering production of documents involving water intrusion and mold, while limiting the relief only to Units 1 and 2 and the unit directly across from Plaintiff, and requiring redaction of private third-party information. (Apr. 21, 2026, Minutes, pp. 1-2, 4.)

In its July 22, 2026, opposition,

HSR Moorpark recognizes its non-compliance with this Court's order but argues that because the face of the Court's order failed to impose a deadline for when production needed to be effected, HSR Moorpark is not in breach of the Court's order. HSR Moorpark otherwise contends that it has diligently worked on gathering the court-ordered production but that the process has been complicated by counsel's trial calendar, and that HSR Moorpark expects to produce documents within 14 days of filing the opposition. (Opposition, p. 8, citing Opposition, Arzoo Decl., ¶¶ 9-13.)

The reply fails to show that HSR Moorpark complied with its discovery obligations prior to July 24, 2026.

After review, the Court finds in favor of Plaintiff.

Simply, HSR Moorpark equivocates on whether a compliance period was set by the Court to openly disregard compliance with the April 21, 2026, order. Nothing in the record before the Court shows that HSR Moorpark has remedied its shortcomings in failing to produce the ordered documents over the past three and a half months.

d. Conclusion

Accordingly, Plaintiff's motion to compel compliance with court orders motion is GRANTED.

Defendant HSR Moorpark, LLC is ORDERED to produce documents in conformity with this Court's April 21, 2026, ruling, within ten (10) days of this order.

Within those ten (10) days, Defendant HSR Moorpark, LLC SHALL redact any personally identifying information related to individual tenants on work orders, bills, and estimates for Units 1, 2, and the Unit directly across from Plaintiff, which the Court accepts as Unit 15. The documents SHALL relate to mold and water intrusion, and are subject to a time period of 2019 to the present.

Failure to comply may result in the imposition of sanctions, monetary or otherwise.

Request for Issue
and Evidence Sanctions

A review of Plaintiff's moving papers shows, as argued by HSR Moorpark (Opposition, pp. 4-5), that Plaintiff failed to file a separate statement in support of her motion.

California Rules of Court, rule 3.1345(a)(7) specifically requires a separate statement in a motion for "issue or evidentiary sanctions." The purpose of that separate statement is to streamline adjudication of discovery motions. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 (*Mills*).) The failure to file a separate statement with a motion when required may result in denial. (See, e.g., *ibid.* at p. 893 [failure to include separate statement as required by Rules of Court justified trial court's discretionary denial of discovery motion].) As stated by the court of appeal regarding separate statements in the summary judgment context: "The burdens imposed upon the trial court ... will be eased considerably if the court insists, as it should, on strict compliance with (the required separate statement)," because the court's ability to focus on and articulate the evidentiary basis for its ruling will be found in the separate statement. (*Young v. Superior Court* (1986) 179 Cal.App.3d 28, 31-32.)

Here, while the Court could exercise its discretion to rule on Plaintiff's motion for issue and evidence sanctions, the burden on the Court to do so would be high insofar as Plaintiff's moving papers insufficiently elaborate on the form and scope of relief sought. Otherwise stated, the moving papers do not offer even a concise outline of the discovery requests and each response in dispute, which may act in lieu of a separate statement and clarify for the court the issues to be addressed in the issue and evidence sanctions context. (See Cal. Rules of Court, rule 3.1345(b)(2).)

Accordingly, Plaintiff's motion for issue and evidence sanctions is DENIED.

Request for Monetary
Sanctions

a. Legal

Standard

In lieu of or in addition to issue, evidence, and terminating sanctions, the court may also impose a monetary sanction under Chapter 7 against a disobedient party-deponent or any party with whom the deponent is affiliated. (Code Civ. Proc., § 2025.450, subd. (k).)

b. Discussion

After review, the Court finds in favor of HSR Moorpark.

As argued in Defendant's opposition, the notice of motion and moving papers fail to identify against whom sanctions are sought (Opposition, pp. 8-9)—e.g., HSR Moorpark and/or counsel—which violates Code of Civil Procedure section 2023.040, requiring that a notice of motion identify every person, party, and attorney against whom sanctions are sought and moreover specify the type of sanction sought.

c. Legal
Standard

Plaintiff's request for monetary sanctions is accordingly DENIED.

Plaintiff Joanna Patrice is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court